



**MEMORANDUM AND
ARTICLES OF ASSOCIATION
OF
SKM EGG PRODUCTS EXPORT
(INDIA) LIMITED**



FORM I. R.



CERTIFICATE OF INCORPORATION

No. 181-6025 of 19 95

I hereby certify that " SKM EGG PRODUCTS

EXPORT (INDIA) LIMITED " **

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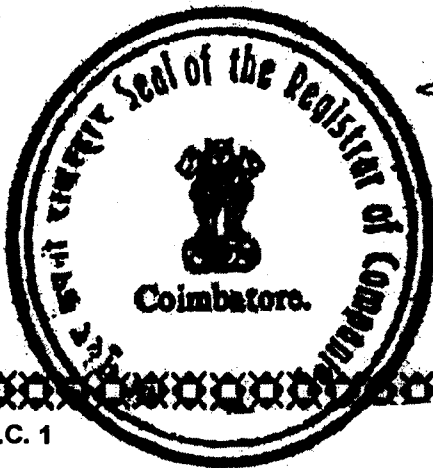
is this day incorporated under the Companies Act, 1956,
(No. 1 of 1956) and that Company is Limited.

Given under my hand at COIMBATORE

this SIXTH day of APRIL
SIXTEENTH CHAITRA

One thousand nine hundred and NINETY FIVE

One thousand nine hundred and SEVENTEEN (SAKA)



(N.S. PONNUNAMBI)
Registrar of Companies
TAMIL NADU
COIMBATORE



Company No. 181-6025

Certificate For Commencement of Business

Pursuant of section 149 (3) of Companies Act, 1956

I hereby certify that the " SKM EGG PRODUCTS
EXPORT (INDIA) LIMITED " ** **
** ** ** ** **

which was incorporated under the Companies Act, 1956, on the
SIXTH day of APRIL 19 95
and which has this day filed a duly verified declaration in the prescribed
form that the condition of section 149 (2) (a) to (c) of the
said Act, have been complied with, is entitled to commence business.

Given under my hand at COIMBATORE
this SEVENTEENTH day of JULY
TWENTY SIXTH ASADHA

One thousand nine hundred and
One thousand nine hundred and

NINETY FIVE

SEVENTEEN

(Saka)



(N.S. PONNUNAMBI)
Registrar of Companies

Tamil Nadu
Coimbatore.

**(THE COMPANIES ACT, 1956)
PUBLIC COMPANY LIMITED BY SHARES**

MEMORANDUM OF ASSOCIATION

OF

SKM EGG PRODUCTS EXPORT (INDIA) LIMITED

- I. The name of the Company is SKM EGG PRODUCTS EXPORT (INDIA) LIMITED.
- II. The Registered Office of the Company will be situated in the state of Tamil Nadu.
- III. (A) The main objects of the Company to be pursued on its incorporation are :
 1. To manufacture, process, prepare, preserve, can, refine, bottle, buy, sell, import, export or otherwise deal in Eggs and Egg products whatsoever in all forms and shapes produced from Eggs by any process.
 2. To manufacture, import, export, buy, sell or otherwise deal in poultry feeds in all forms.
 3. To carry on the business of Poultry Farming and Producing, Buying, Selling, Importing, Exporting, Preserving, Dealing and Trading in all kinds of products of such business and in particular Poultry.

(B) The objects of the Company incidental or ancillary to the attainment of the main objects are:

1. To acquire and undertake all or any part of the business, property and liability of any person or company carrying on any business which the company is authorised to carry on or possess property suitable for the purpose of the Company.
2. To purchase, take on lease, hire, exchange or otherwise acquire or sell any movable or immovable property, assets, rights, privileges and business from promoters or others and in particular land, buildings, easements, machinery, plant, stock in trade for the purpose of business of the Company or to turn the same to account as may be deemed expedient from any person or company including promoters and to adopt and ratify agreements of deeds executed in connection therewith by such persons, companies and promoters.
3. To purchase, take on lease, construct or otherwise acquire any lands, houses, offices, workshops, buildings and premises and any fixed and movable machinery, tools, engines, boilers, plants, implements, and patents, properties, convenient to be used in or about the trade or business or for the use of the Company.
4. To purchase, develop, invent, acquire, protect, and use whether in India or elsewhere, any patents, patent rights, licenses, privileges, protections and concessions which may appear likely to be advantageous or useful to the Company and to grant licenses or privileges in respect of the same and to manufacture and produce and trade and deal in all machinery, plant, articles, appliances and things capable of being manufactured, produced or traded in by virtue of or in connection with any such inventions, processes, letters, patent, licenses, concessions, rights or privileges as aforesaid.
5. To promote any company or companies for the purpose of acquiring all or any of the property, rights and liabilities of this company or for any other purpose which may seem directly or indirectly to benefit the Company.
6. To make, draw, accept, endorse, execute, discount or negotiate and issue, cheques, promissory notes, hundies, bills of exchange, bills of lading, railway receipts and other negotiable or transferable Instruments.
7. To open account or accounts with any individual, firm or company or with any Bank and to pay into, withdraw money from such account or accounts.
8. To borrow, raise moneys, obtain guarantees or to receive moneys on deposits with or without interest by the issue of bonds, debentures convertible or otherwise and to mortgage, pledge or charge the whole or any part of the property, assets or revenue of the Company, present or future, including its uncalled capital or otherwise to transfer or convey the same absolutely or in trust and to give the lenders powers of sale of the property (except uncalled capital) and other powers as may be deemed expedient and to purchase, redeem or pay off any such securities.

9. To lend money on mortgage of immovable property or on the hypothecation or pledge of movable property or without security to such person and on such terms as may seem expedient.
10. To invest and deal with the moneys of the Company in any investments, movable or immovable, in such manner as may from time to time seem expedient.
11. In connection with the business of the Company, to guarantee the payment of money secured by or under or in respect of debenture bonds, contracts, mortgages, charges. Obligations and securities of, or otherwise to guarantee the due performance of any obligations or contracts of any company or of any authority supreme, local or otherwise or of any persons whomsoever whether corporate or incorporate or to indemnify any person, company, firm or association of persons against any loss or damage that may be sustained by that person, company, firm or association of persons.
12. To appoint and remunerate experts, scientists, engineers, mechanics, managers, accountants, lawyers, professors, teachers, contractors, brokers, canvassers, agents, artisans, workmen and other persons and to establish and maintain factories, agencies, branches and offices in the Indian Union or in any States in India or elsewhere for the purpose of achieving all or any of the objects of the Company and/or to discontinue the same.
13. To sell, improve, manage, work, develop, lease, mortgage, abandon or otherwise deal with all or any part of the properties, rights and concessions of the Company.
14. To sell, lease, mortgage or otherwise dispose of the property, assets or undertaking of the Company or any part thereof for such consideration as the Company may think fit and particular for shares, stocks, debentures, or other securities of any other company whether or not having objects altogether or in part similar to those of the company.
15. To apply for, tender, purchase or otherwise acquire any contracts, sub-contracts, licenses and concessions for or in relation to any of the objects or business herein mentioned and to undertake, sub-contract, execute, carry out, dispose of or otherwise turn to account the same.
16. To enter into any contract, agreement, arrangement or other dealings in the nature of *technical collaboration or otherwise for the conduct of the business of the Company* or any part thereof.
17. To establish or promote or concur in establishing or promoting any company or companies for the purposes of acquiring all or any of the property, rights and liabilities of Company or for any other purpose which may seem directly or indirectly calculated to benefit the company and to place or guarantee the placing of, ~~underwrite subscribe for or otherwise acquire all~~ or any part of the shares, debentures or other securities of any such other company.

18. To establish, provide and conduct or otherwise subsidise research laboratories and experimental workshops for scientific and technical research and experiments; to undertake and carry on scientific and technical researches, experiments and tests of all kinds, to promote studies and researches both scientific and technical investigations and inventions by providing, subsidising, endowing or assisting laboratories, workshops, libraries, lectures, meetings and conferences and by providing for exhibitions, scholarships, prizes, grants to students or otherwise and generally to encourage, promote and reward studies, researches, investigations, experiments, tests and inventions of any kind that may be considered likely to assist any business which the Company is authorised to carry on.
19. To establish, undertake, recognise or subscribe to any trust or trusts for the aims and objects mentioned above or for any other objects or aim and undertaking whereof as may seem desirable whether gratuitously or otherwise.
21. To transport the raw materials, products, materials and things which the Company is authorised to purchase, produce, manufacture, sell or deal in.
21. To take part in management, supervision or control of the business or operation of any Company or undertaking.
22. To generate, utilise, buy electricity, gas, steam, water and heat energy in any form including heating, cooling, air-conditioning and refrigeration as may be required for the aforesaid main objects.
23. To buy, develop, erect, install, engage generators, turbines, apparatus and other equipments to generate electricity for the business of the Company using coal, oil, water or any other substances, solar energy, atomic energy, wind energy or any other form of energy; and to buy, distribute and utilise electricity for the aforesaid business or otherwise.
24. To provide for the welfare of the employees or ex- employees. Directors or Ex-Directors of the Company and the wives, families, dependents or connections of such persons by building or contributing to the building of houses, colonies, settlements, dwelling or by grants of money, pensions, allowances, bonus or other payments or by creating and from time to time subscribing, contributing to provident and other associations, institutions, fund or trusts and by providing or subscribing or contributing towards places of instructions and recreations, hospitals and dispensaries, medical and other attendance and other assistance as the Company shall think fit and to subscribe or otherwise to assist or to guarantee money to charitable, benevolent, religious, scientific, national, or other institutions or objects, which shall have any moral or other claim to support or aid by the Company either by reason of locality of operation or of public and general utility or otherwise, and to support and subscribe for or contribute to any funds of any trade, commerce or industry provided such contribution is likely to lead to the advantage and furtherance of the business carried on by this Company.

25. To amalgamate, enter into partnership, or enter into collaboration agreement or arrangement or understanding or associate with any Indian or foreign company or body corporate or firm or individuals or enter into any arrangement with any Indian or foreign company or body corporate or firm or individual for sharing profits, union of interests, co-operation, joint ventures, reciprocal concessions, or for limiting competition with any person or company carrying on or engaged in, or about to carry on or engage in, any business or transaction which the Company is authorized to carry on or engage in or which can be carried on in conjunction therewith or which is capable of being conducted so as to directly or indirectly benefit the Company.
26. To pay for any rights or property acquired by the Company and to remunerate any person or company whether by cash payment or by the allotment of shares, debentures or other securities of the Company credited as paid up in full or in part or otherwise,
27. To pay all the costs, charges and expenses for the promotion, formation, registration and establishment of the Company and the issue of its capital including any underwriting or other commission, broker's fees and charges in connection therewith and to remunerate or make donations to (by cash or other assets) or by the allotment of fully or partly paid shares or by a call or option on shares, debentures or debenture stock or securities of this or any other company or in any manner whether out of the Company's capital or profits or otherwise any person, firm or Company for services rendered or to be rendered in procuring any property or business to the company or in placing or guaranteeing the subscription of shares, debentures or other securities of the Company or in the formation or promotion of the Company or for any other reason which the Company may think proper.
28. To distribute among the members in specie any property of the Company or any proceeds of the sale or disposal of any property of the Company in the event of its being wound up. No distribution amounting to a reduction of capital be made except with the sanction if any, for the time being required by law.
29. Subject to the provisions of the Companies Act, 1956, to distribute as dividend or bonus among the members or otherwise to apply as the Company may from time to time think fit, any moneys received by way of premium on shares or debentures issued at a premium by the Company and any moneys received in respect of the dividends forfeited shares and moneys arising from the sale by the Company of forfeited shares or from unclaimed dividends.
30. To create any depreciation fund, reserve fund, sinking fund or any other special fund whether for depreciation or for repairing, improving, extending or maintaining any of the properties of the Company or for any other purpose conducive to the interest of the Company.
31. Subject to the provisions of the Companies Act, 1956, or any other enactment in force indemnify and keep indemnified members, officers, directors, agents and

servants of the Company against proceedings, costs, damages, claims and demands in respect of anything done or ordered to be done by them for and in the interest of the Company and for any loss, damage, or misfortune whatever and which shall happen in execution of the duties of their office or in relation thereto.

32. To agree to refer to arbitration any disputes present or future between the Company and any other Company, firm or individual and to submit the same to arbitration in India or abroad either in accordance with Indian or any foreign systems of law.
33. To apply for promote and obtain any Act of Parliament, charter, privilege, concession, license or authorisation of any Govt. State of Municipality provisional order or license of any authority, for enabling the Company to carry any of its objects into effect or for extending any of the powers of the Company or for effecting any modification of the constitution of the Company or for any other purpose which may seem expedient and to oppose any proceeding or applications which may seem calculated directly or indirectly to prejudice the interests of the Company.
34. To procure and supply water and to sink wells and shafts therefore and to make, build, construct, lay and maintain reservoirs, water works, canals, ponds, cisterns, culverts, filters, beds, pipes and appliances:
35. To adopt such means of making known the business of the Company as may be deemed expedient and in particular by advertising in press, circulars, publications in periodicals magazines and books and by instituting of prizes, rewards and donations with regard to any subject, matter or event.
36. To arrange for the marketing and sale of the products and by-products of the company and all raw materials, ancillaries, consumable goods and articles as are normally necessary for carrying on the business of the Company and for that purpose either to establish its own shops, agencies or marketing organisations or to appoint selling agents and distributors in any place in or outside India, on such terms and conditions and on such remuneration to such agents or distributors in such other manner as may be deemed expedient.
37. To do all or any of the above things in any part of India and in any part of the world, and either as principals, agents, contractors, trustees or otherwise and by or through trustees, agents or otherwise either alone or in conjunction with others and to do all such other things as are incidental or conducive to the attainment of the above subjects or any of them.
38. To make, buy, use. packing materials including bottles, boxes, cartons, tubes, papers or other packing devices and to print, publish books, brochures, pamphlets, labels, handouts and others for carrying out sales promotional activities of the Company.

39. To manufacture medicine, vaccines, preservatives, chemicals and other allied products or things for the purpose of medical preparations used in Poultry farming.

(C) The other objects of the Company not indicated in "A" and "B" above are:

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1. To carry on and undertake the business of hatching eggs, rearing chicks, establishing brooding and grower facilities and providing allied services to the poultry industry on job contract, custom hatching, consultancy or turnkey project basis or otherwise or carrying on the aforesaid business for own benefit.
 2. To carry on and engage in the business of chicken powder, meat powder, chicken processing, meat processing, .fish processing. Vegetable processing, fruit processing, manufacturers producers, suppliers and dealers on milk powder, flour, cocoa powder, sugar, jaggery, cashew nut and groundnut products, chickie, chocolates, baby foods, health foods, confectionery, ghee, vanaspathi, vegetable oil, chicken products, meat products, egg products fast foods, food products, fruit products and vegetable products
 3. To carry on the business as manufacturers, makers, dealers, importers, and traders in all kinds of fertilizers, chemicals and natural or mixed fertilizers.
 4. To carry on the business of manufacturers and dealers of all natural, artificial synthetic or chemical, edible food colour.
 5. To carry on business as representatives, sales agents, distributing agents, indenting agents, commission agents and stockists for manufacturers of all kinds of goods and merchandise in India or abroad.
 6. To carry on business as technical consultants, advisors, and surveyors, of technical know-how, formulas, processes and applied technology and to organise and pursue research and development in areas chosen from time to time.
 7. To carry on business as proprietors and publishers of newspapers, journals, magazines, books and other literary works and undertakings,
- IV. The liability of the Members of the Company is limited.
- V. The Authorised Share Capital of the Company Is Rs.30,00,00,000/- (Rupees Thirty Crores only) divided into 3,00,00,000/- (Three crores only) Equity shares of Rs. 10/- (Rupees Ten only each) with power to increase or reduce or alter the capital in accordance with the law.

We, the several persons whose names and addresses are subscribed are desirous of being formed into a Company in pursuance of this Memorandum of Association and we respectively agree to take the number of shares in the capital of the Company set opposite our respective names.

S. No	Name and address, occupation and description of subscribers	Number of shares taken by each subscriber	Signature
1	S.K. Mylsamy Goundar, S/o. K.R.Krishnasamy Gounder. 38. Periyar Nagar, Erode - 638 001. Business	5 Five	(Sd.) S.K. Mylsamy Goundar
2	S.K.M. Shree Shivkumar, S/o. S.K. Mylsamy Goundar. 38. Periyar Nagar, Erode - 638 001. Business	5 Five	(Sd.) S.K.M. Shree Shivkumar
3	M. Kuttilakshimi, W/o. S.K. Mylsamy Goundar, 38. Periyar Nagar, Erode - 638 001. Business	5 Five	(Sd.) M. Kuttilakshimi
4	S. Kumutaavalli, W/o. S.K.M. Shree Shivkumar, 38. Periyar Nagar, Erode - 638 001. Business	5 Five	(Sd.) S. Kumutaavalli
5	S.M.Venkatachalapathy, S/o. S.R.Muthuswamy, 7. Narayanaswamy Road, Uzhavan Nagar, Erode - 638 009. Advocate	5 Five	(Sd.) S.M.Venkatachalapathy
6	M. N. Chinnaswami, S/o. M.P.Nataraja Gounder, 451.S.K.C.Road. Erode - 638 009. Business	5 Five	(Sd.) M. N. Chinnaswami
7	P.Shanmugasundaram, S/o. K.Palanisamy, 42/17. II Main Road. Gandhi Nagar, Madras-600020. Service (Representing TIDCO, Madras)	5 Five	(Sd.) P.Shanmugasundaram
Total No. of Shares		35 Thirty Five	

Date : 30.03.1995
Place: Erode

Witness to the above signature.

V. Kamalakannan A.C.A., A.C.S.,
10, Govindarajan Nagar,
Erode - 638 002.

All signed before me at Erode

(Sd.) V. Kamalakannan

(THE COMPANIES ACT, 1956)

(PUBLIC COMPANY LIMITED BY SHARES)

ARTICLES OF ASSOCIATION

OF

SKM EGG PRODUCTS EXPORT (INDIA) LIMITED

TABLE 'A' APPLICATION

1. The Regulations contained in Table "A" in the Schedule I to the Companies Act, 1956, shall not apply to the Company, except to the extent they are incorporated in these presents.

INTERPRETATION

2. Unless the context otherwise requires, words or expressions contained in these articles shall have the same meaning as in the Act or any statutory modification thereof in force at which the articles become binding on the Company.

In these presents, unless there be something in the subject or context inconsistent therewith or unless the context otherwise requires:

- a) "The Act" means the Companies Act, 1956 and includes where the context so admits any re-enactment or statutory modifications thereof for the time being in force.
- b) "The Articles" means these Articles of Association as originally or as from time to time altered by Special Resolution.
- c) "The Company" means SKM EGG PRODUCTS EXPORT (INDIA) LIMITED.
- d) "The Directors" means the Directors for the time being of the Company.
- e) "The Board of Directors" or "The Board" means the Board of Directors for the time being of the Company.
- f) "The Office" means the Registered Office for the time being of the Company.
- g) "Register" means the Register of members of the Company required to be kept by section 150 of the Act.
- h) "Month" means calendar month.
- i) "Seal" means the Common Seal of the Company.
- j) "Proxy" includes Attorney duly constituted under a Power of Attorney.
- k) "In writing" and "Written" include printing, lithography and other modes of representing or reproducing words in a visible form.
- l) "TIDCO" means Tamilnadu Industrial Development Corporation Limited.
- m) "Paid-up" includes credited as paid up.
- n) Words importing the singular number also include the plural number and vice versa. Words importing the masculine gender also include feminine gender. Words importing person include corporations.

- 3. The business of the Company shall include the several objects expressed in Memorandum of Association or any of them each object to be constructed independently or jointly.

AUTHORISED SHARE CAPITAL

4. The Authorised Share Capital of the Company is Rs. 30,00,00,000/- (Rupees Thirty Crore only) divided into 3,00,00,000 (Three Crores only) Equity Shares of Rs.10/- (Rupees Ten only) each.
5. a) The Cumulative, Redeemable Preference Shares whenever issued shall confer on the holders thereof the right to receive a fixed cumulative preferential dividend at such rate to be decided by Board subject to deduction of tax at the rates from time to time applicable on the capital for the time being paid up or credited as paid up thereon from the date of allotment in priority to the Equity shares and the right in a winding-up to the payment of capital or arrears of dividend whether declared or not upto the commencement of the winding up, out of surplus assets of the Company and in priority to the Equity Shares but shall not confer any further right to participate in profits or assets of the Company.
- b) The Preference shares shall have no voting right, save and except as provided in the Act and the Articles of Association of the Company.
- c) The Preference Shares shall be redeemable at par in accordance with the terms of issue and/or as may be determined by directors.
- d) In the event of any further issue of Preference Shares ranking *pari-passu* with the existing Preference Shares, it will be done with the sanction of a special resolution passed at separate meeting of the holders of the same Preference Shares.

ALLOTMENT OF SHARES

6. Subject to the provision of these Articles, the shares shall be under the control of the Board who may allot or otherwise dispose of the same to such persons on such terms and conditions, at such times, either at part or at premium and for such consideration as the Board thinks fit. Provided that where at any time it is proposed to increase the subscribed capital of the Company by the allotment of further shares, then subject to the provisions of Section 81 (1-A) of the Act, the Board shall issue such shares in the manner set out in Section 81 of the Act.

REDEEMABLE PREFERENCE SHARES

7. Subject to the provisions of these Articles, the Company shall have power to issue preference shares carrying a right to redemption out of profits which would otherwise be available for dividend or out of the proceeds of

a fresh issue of shares made for the purpose of such redemption or liable to be redeemed at the option of the Company and the Board may subject to the provisions of the Act, exercise such power in such manner as may be provided in these Articles.

BOARD MAY ALLOT SHARES FOR CONSIDERATION OTHER THAN CASH

8. The directors may issue and allot shares in the Capital of the Company as partly or fully paid up in consideration of any property sold or goods transferred or machinery supplied or services rendered to the Company in the conduct of its business and shares which may be so allotted, may be issued as fully or partly paid-up shares, and if so issued shall be deemed to be fully or partly paid up shares, as the case may be.

CONSIDERATION OR BROKERAGE

9. The Company may exercise the powers of paying Commission conferred by Section 76 of the Act and in such case shall comply with the requirements of that Section. Such commission may be satisfied by the payment of cash or the allotment of fully or partly paid shares or partly in one way and partly in the other. The Company may also on any issue of shares or debentures pay such brokerage as may be lawful.

SHARES AT A DISCOUNT

10. With the previous authority of the Company in general meeting and the sanction of the Company Law Board and upon otherwise complying with the Act, the Board may issue at a discount shares of a class already issued.

POSITION OF NEW SHARES

11. Except so far as otherwise provided by the conditions of issue or by these presents, any capital raised by the creation of new shares, shall be considered as part of the existing capital and shall be subject to the provisions therein contained with reference to the payment of calls and instalment, forfeiture, lien, surrender, transfer and transmission, dividend and otherwise.

INSTALMENTS ON SHARES BE DULY PAID

12. If, by conditions of allotment of any share the whole or part of the amount or issue price thereof shall be payable by instalments, every such instalments shall, when due be paid to the Company by the person who for the time being, shall be registered holder of the share or by his executor or administrator.

TRUSTS NOT RECOGNIZED

13. Save as herein otherwise provided and subject to the Act, the Company shall be entitled to treat the registered holder of any share as the absolute owner thereof and accordingly shall not, except as ordered by a Court of competent jurisdiction or as by statute required be bound to recognize any equitable or other claim to or interest in such share on the part of any other person.

WHO MAY BE REGISTERED

14. Shares may be registered in the name of any person, company or other body corporate. Not more than four persons shall be registered as joint holders of any shares.

ACCEPTANCE OF SHARES

15. An application signed by or on behalf of any applicant for shares in the company, followed by an allotment of any share shall be acceptance of shares within the meaning of these Articles and every person who thus or otherwise accepts any shares and whose name is on the Register shall, for the purpose of these Articles be a member.

DEPOSIT AND CALL TO BE PAYABLE IMMEDIATELY

16. The money if any which the Directors shall on the allotment of any shares being made by them, require or direct to be paid by way of deposit, call or otherwise in respect of any shares allotted by them, shall immediately on the inscription of name of the allottees in the register as the holder of such shares, become a debt due to and recoverable by the Company from the allottee of the shares and shall be paid by him accordingly.

LIABILITY OF MEMBERS

17. Every member or his heirs, executors or administrators shall pay to the company the proportion of the capital represented by his share or shares which may, for the time being remain unpaid thereon in such amounts at such time or times, at such place or places and in such manner as the Directors shall from time to time in accordance with the Company's regulations, require or fix for the payment thereof.

OF JOINT HOLDERS THE FIRST PERSON NAMED DEEMED SOLE HOLDER

18. If any share stands in the names of two or more person, the persons first named in the Register shall, as regards receipt of dividends or bonus,

service of notices and all or any other matters connected with the company, except for voting at meeting and the transfer of share, be deemed the sole holder thereof.

COMPANY NOT BOUND TO RECOGNIZE ANY INTEREST IN SHARE

19. The Company shall not be bound to recognize any equitable, contingent, future or partial interest in any share or (except only as is by these presents, otherwise expressly provided) any other right in respect of a share than an absolute right thereto, in accordance with these presents, in person from time to time registered as the holder thereof; but the Board shall be at liberty, at their discretion, to register any share in the joint names of any two or more persons or the survivor of them.

CERTIFICATES

CERTIFICATES TO BE ISSUED

20. The certificates of title of share and duplicates thereof where necessary shall be issued under the seal of the company which shall be affixed in the presence of Two Directors and Secretary or some other person appointed by the Board for the purpose and signed by them in the manner laid down in the Companies (Issue of Share Certificates) Rules, 1960. Share certificates shall be issued in marketable lots.

ISSUE OF SHARE CERTIFICATES

21. The issue of share certificates and duplicates and the issue of new share certificates which are surrendered for cancellation due to their being defaced, torn, old, decrepit or worn out or the pages for recording transfers having been utilised or of share certificates which are lost or destroyed shall be in accordance with the provision of the Companies (Issue of Share Certificates) Rules, 1960 or any statutory modification or re-enactment thereof. If any share certificates be lost or destroyed then proof thereof to the satisfaction of the Directors and on such indemnity as the Directors think fit being given, a new certificate in lieu thereof shall be given to the party entitled to the shares to which such lost or destroyed certificate shall relate.

MEMBERS RIGHT TO CERTIFICATE

22. Every member shall be entitled to one certificate for all the shares of each class registered in his name or if the Directors so approve to several certificates each for one or more of each shares. The company shall, within one month from the closure of the subscription list and on surrender to the Company of its Letter of Allotment or its fractional coupons of requisite value (save in the case

of issue against letters of acceptance or of renunciation or in cases of issue of bonus shares) complete and deliver the certificates of such shares. In respect of any share held jointly by several persons company shall not be bound to issue more than one certificate and delivery of a certificate for a share to such person whose name stands first in the Register of Members, shall be sufficient delivery to all such holders.

23. Every certificate shall specify the name or names of the person or persons in whose favour the certificate is issued, the shares to which it relates and the amount paid up thereon. When issued with the same number as a share certificate which has been defaced, lost or destroyed, it shall state on the face of it and against the stud or counterfoil that it is a duplicate issue for the one so defaced, lost or destroyed.

CALLS

BOARD MAY MAKE CALLS

24. The Board may, from time to time, subject to the terms on which any share may have been issued, and subject to the provisions of the Act make such calls as the Board thinks fit upon the member in respect of all money unpaid on the shares held by them respectively, (whether on account of the nominal value of these shares or by way of premium) and not by the conditions of allotment thereof, made payable at fixed times, and each member shall pay the amount of every calls so made to him to the persons and at the times and places appointed by the Board. Unless otherwise determined by the Board, no call shall exceed one half of the nominal amount of share or be made payable within one month after the last preceding call was payable. Not less than 30 days notice of any call shall be given specifying the time and place of payment and to whom such call shall be paid. That option or right to call of shares shall not be given to any person except with the sanction of the Company in General Meeting.

EXTENSION OF CALL

25. The Board may, from time to time, at their discretion extend the time fixed for the payment of any call and may extend such time to all or any of the member, who on account of residence at a distance or some other cause, may be deemed fairly entitled to such extension, but no member shall as a matter of right be entitled to such extension, save as a matter of grace and favour.

DATE OF CALL

26. A call shall be deemed to have been made at the time when the resolution of the Directors authorising the call was passed.

JOINT HOLDERS LIABILITY ON CALL

27. The joint holders of a share shall jointly and severally be liable to pay all calls in respect thereof.

CALLS TO CARRY INTEREST

28. i) If a sum called in respect of shares is not paid before or on the day appointed for payment thereof the person from whom the sum is due shall pay interest thereon from the day appointed for payment thereof to the time of actual payment at a rate to be determined by the Directors but not exceeding 18% p.a.
- ii) The Directors shall be at liberty to waive the payment of any such interest wholly or in part in the case of any person liable to pay such interest on calls.

CALLS AND INSTALMENTS WHEN PAYABLE

29. Any sum which by the terms of issue of a share becomes payable on allotment or at any fixed date or by instalments at fixed times, whether on account of the nominal value of the share or by way of premium, shall for the purposes of these regulations be deemed to be a call duly made payable on the date on which by terms of issue such sum becomes payable.

CALLS MAY BE REVOKED

30. A call may be revoked or postponed at the discretion of the Board.

EVIDENCE IN ACTION OF CALL

31. On the trial or hearing of any action or suit brought by the company against any share holder or his representative to recover any debt or money claimed to be due to company in respect of his shares, it shall be sufficient to prove that the name of the defendant is or was when the claim arose, on the Register of Members of the Company as a holder of one or more shares in respect of which such claim is made and that the amount claimed is not entered as paid in the books of the company and it shall not be necessary to prove appointment of

the Directors who made any call nor that a quorum was present at the Board at which any call was made, nor that the meeting at which any call was made was duly convened or constituted, nor any other matter whatsoever, but the proof of the matters aforesaid shall be conclusive evidence of the debt.

SUMS DEEMED TO BE CALLS

32. Any sum, which by the terms of issue of a share/ debenture becomes payable on allotment or at any fixed date, whether on account of the nominal value of the share/debenture or by way of premium, shall for the purpose of these Articles be deemed to be a call duly made and payable, and in case of non-payment all the relevant provisions of these Articles as to payment of interest and expenses for forfeiture or otherwise, shall apply as if such sum had become payable by virtue of a call duly made and notified.

PARTIAL PAYMENT NOT TO PRECLUDE FORFEITURE

33. Neither the receipt by the company of a portion of any money which shall from time to time be due from any member of the company in respect of his shares either by way of principal or interest nor any indulgence granted by the company in respect of the payment of any such money shall preclude the company from thereafter proceeding to enforce a forfeiture of such shares as hereinafter provided for non-payment of whole or any balance due in respect of the shares.

PAYMENT OF CALLS IN ADVANCE

34. The Board may, if it thinks fit, receive from any member willing to advance the same, all or any part of the money due upon the share held by him beyond the sums actually called for, and upon the money so paid or satisfied in advance, or so much thereof as from time to time exceeds the amount of the calls then made upon the shares in respect of which such advance has been made, the company may pay interest at such a rate not less than 15% p.a or as the member paying such sum in advance and the Board agrees upon. Money so paid in excess of the amount of calls shall not rank for dividends or confer a right to participate in profits. The Board may at any time repay the amount so advanced upon giving to such member not less than one month notice in writing.

FORFEITURE

IF CALL OR INSTALMENT NOT PAID NOTICE MAY BE GIVEN

35. If any member fails to pay any call, instalment of a call on or before the day appointed for the payment of the same or any such extension thereof as aforesaid, the Board may, at any time thereafter during such time as the call or instalment remains unpaid, serve a notice on such member or his legal representative or if service of notice is not possible then by way of an advertisement requiring him to pay the same together with any interest that may have accrued and by reason of such non-payment.

FORM OF NOTICE

36. The notice shall name a day (not being less than 30 days from the date of the notice) and a place or places on and at which such call or instalment and such interest is payable. The notice shall also state that in the event of non-payment at or before the time and at the place appointed, the shares in respect of which such call was made or instalment is payable will be liable to be forfeited.

IF NOTICE NOT COMPLIED WITH SHARES MAY BE FORFEITED

37. If the requisitions of any such notice as aforesaid be not complied with any shares in respect of such notice has been given may, at any time in respect thereof, be forfeited by a resolution of the Board to that effect whereupon the holder of such shares shall cease to have any interest therein and his name (as holder of such shares) shall be removed from Register. Such forfeiture, shall include all dividends declared in respect of the forfeited shares and not actually paid before the forfeiture.

NOTICE AFTER FORFEITURE

38. When any share shall have been so forfeited, notice of the resolution shall be given to the member in whose name it stood immediately prior to the forfeiture and an entry of the forfeiture with the date thereof shall forthwith be made in the Register but no forfeiture shall be in any manner invalidated by any commission or neglect to give such notice or to make such entry as aforesaid.

FORFEITED SHARES TO BECOME PROPERTY OF THE COMPANY

39. Any share so forfeited shall be deemed to be the property of the company, and the Board may sell, re-allot or otherwise dispose of the same in such manner as it thinks fit.

POWER TO ANNUL FORFEITURE

40. The Board may at any time before any share so forfeited shall have been sold, or otherwise disposed of, annul the forfeiture thereof upon such conditions as it thinks fit.

ARREARS TO BE PAID NOTWITHSTANDING FORFEITURE

- 41 Any member whose shares have been forfeited shall, notwithstanding the forfeiture, be liable to pay and shall forthwith pay to the Company all calls, instalment, interests, expenses and any other moneys owing upon or in respect of such shares at the time of the forfeiture together with interest thereon from the time of the forfeiture until payment, at such rate not exceeding eighteen percent per annum as the Directors may determine and the Directors may enforce the payment thereof if they think fit.

EFFECT OF FORFEITURE

42. The forfeiture of a share shall involve extinction, at the time of the forfeiture, of all interest in and all claims and demands against the Company, in respect of the share and all other rights incidental to the share including dividends, except only such of those rights as by these presents are expressly saved.

EVIDENCE OF FORFEITURE

43. A certificate in writing under the hands of one Director that a call in respect of a share was made and due notice thereof given and that default in payment was made and that forfeiture of the share was made by a resolution of the Directors to that effect shall be conclusive evidence of the facts stated therein.

FORFEITURE PROVISION TO APPLY TO NON-PAYMENT IN TERMS OF ISSUE

44. The provisions of Articles 35 to 43 hereof shall apply in the case of non-payment of any sum which, by the terms of a share, becomes payable at a fixed time, whether on account of the nominal value of a share or by way of premium, if the same had been payable by virtue of a call made and notified.

LIEN

COMPANY & LIEN ON SHARES:

45. The company shall have a first and paramount lien upon every share not being fully paid up registered in the name of any member (whether solely or jointly with others) and upon the proceeds of sale thereof, for moneys called or payable at a fixed time in respect of such share whether the time for the payment thereof shall have actually arrived except upon the footing and condition that Article 16 hereof is to have full effect. Such lien shall extend to all dividends and bonuses from time to time declared in respect of such shares. Unless otherwise agreed, the registration of a transfer of a share shall operate as waiver of the Company's lien, if any, on such share. The Directors may at any time declare any shares wholly or in part to be exempt from the provisions of this clause.

AS TO ENFORCING LIEN BY SALE

46. For the purpose of enforcing such lien, the Board may sell the share subject there to in such manner as it thinks fit, but no sale shall be made until such time for payment as aforesaid shall have arrived and until notice in writing of the intention to sell shall have been served on such member, his executor or administrator or his committee, curator or other legal representatives as the case may be and default shall have been made by him or them in the payment of the money called or payable as aforesaid for seven days after the date of such notice.

APPLICATION OF PROCEEDS OF SALE

47. The net proceeds of the sale shall be received by the Company and applied in or towards payment of such part of the amount in respect of which the lien exists as is presently payable and the residue if any, shall be appropriated, in such manner as may be deemed fit by the Board.

VALIDITY OF SALES IN EXERCISE OF LIEN AND AFTER FORFEITURE

48. Upon any sale after forfeiture or enforcing a lien, in proposed exercise of the powers hereinbefore given, the Board may appoint some person to execute an instrument of transfer of the share sold and cause the purchaser's name to be entered in the Register in respect of the share sold and the purchaser shall not be bound to see the regularity of the proceedings, nor to the application of the purchase money, and after his name has been entered in the Register in respect of such share the validity of the sale shall not be impeached by any person, and the remedy of any person aggrieved by this shall be in damages only and against the Company exclusively.

TRANSFER AND TRANSMISSION

REGISTRATION OF TRANSFER OR TRANSMISSION

49. Except in the case where the Directors have declined to register the transfer of a share in terms of Article 51, the transfer or transmission of shares shall be registered by the Company within one month after the application for the registration of the transfer or transmission of share, supported by the necessary documents referred to in these Articles, is submitted to the Company and the Company shall deliver the share certificate or share certificates to the transferee or the person to whom the shares have been transmitted within one month from the date of submission of application for the registration aforesaid.

INSTRUMENT OF TRANSFER:

50. a) The instrument of the transfer shall be in writing and the provisions of the Companies Act, 1956 and of any statutory modifications thereof for the time being shall be duly complied with in respect of all transfer of shares and the registration thereof. The shares of the Company are freely transferable provided such shares are fully paid up and the Company has no lien on the said shares.
- b) Separate instrument of transfer shall be executed for each class of shares.
- c) Every such instrument of transfer shall be signed by on behalf by both the transferor and transferee and the transferor shall be deemed to remain the holder of such shares until the name of the transferee is entered in the Register in respect thereof.
- d) Every instrument of transfer in the prescribed form with the date of such presentation stamped or otherwise endorsed thereon shall, after it is duly stamped, and executed by or on behalf of the transferor and the transferee and completed in all respects, be delivered to the company, within such time from the date of such presentation as may be prescribed by the Act or within such extended period as may be granted by the Central Government under sub-section 1(d) of Section 108 of the Act. Before the registration of a transfer the certificate or certificates of the shares must be delivered to the Company.

BOARD'S RIGHT TO REFUSE

51. Subject to the provisions of Section 111 of the Act and subject to the provisions of the Securities Contract (Regulations) Act, 1956, the Directors may at its discretion and without assigning any reason, decline to register

or acknowledge any transfer of shares whether fully paid or not (notwithstanding the proposed transferee be already a member) but in such cases, it shall within 15 days from the date on which the instrument to the transfer was lodged with the company, send to the transferee and transferor notice of the refusal to register such transfer. Provided that registration of a transfer shall not be refused on the ground that the transferor being either alone or jointly with any other person indebted to the company on any account whatsoever except a lien on the shares.

FURTHER RIGHT OF BOARD TO REFUSE TRANSFER

52. The Board of Directors may also decline to recognise any instrument of transfer unless:

- a) The instrument of transfer is accompanied by the certificate of shares to which it relates and such other evidence as the Board of Directors may reasonably require to show the right of the transferor to make the transfer: and
- b) The instrument of transfer is in respect of only one class of share.

TRANSFER FEE

53. Notwithstanding any other provision to contrary in these presents, no fee shall be charged for any of the following;

- a) For registration of transfers of shares and debentures or for transmission of shares and debentures.
- b) For sub-division and consolidation of share and debenture certificate and for sub-division of letters of allotment and split, consolidation, renewal and pucca transfer receipts into denominations corresponding to the market units of trading.
- c) For sub-division of renounceable letters of Right.
- d) For issue of certificates in replacement of those which are old, decrepit, or worn out, or where the cages on the reverse for recording transfers have been fully utilised.
- e) For registration of any power of attorney, probate, letters of administration or similar other documents.

CLOSURE OF REGISTER OF MEMBERS

54. The Board of Directors may after giving not less than 7 days previous notice by advertisement in some newspaper circulating in the district in which the Registered Office of the Company is situate, close the Register of Members or the Register of debenture holders for any period or periods not exceeding in the aggregate forty-five days in each year but not exceeding thirty days at any one time.

RIGHT TO SHARES ON DEATH OF A MEMBER

55. (1) On the death of a member, the survivor or survivors where the member was a joint-holder, and his legal representative where he was a sole holder, shall be only person recognised by the Company as having any title to his interest in the shares.
- (2) Nothing in clause (1) shall release the estate of a deceased joint holder from any liability in respect of any shares which has been jointly held by him with other persons.

RIGHTS AND LIABILITIES OF A LEGAL REPRESENTATIVE

56. (1) Any person becoming entitled to a share in consequence of the death or, insolvency of a member may, upon such evidence being produced as may from time to time be properly required by the Board and subject as herein after provided, elect, either:
- a) To be registered himself as holder of the share.
 - b) To make such transfer of the shares as the deceased or insolvent member could have made.
- (2) The Board shall, in either case, have the same rights to decline or suspend registrations as it would have had, if the deceased or insolvent member had transferred the share before his death or insolvency.

NOTICE BY SUCH PERSON OF HIS ELECTION

57. (1) If the person becoming entitled shall elect to be registered as holder of the share himself, he shall deliver or send to the company a notice in writing by him stating that he so elects.
- (2) If the person aforesaid shall elect to transfer the shares, he shall testify his election by executing a transfer of the share.

- (3) All the limitations, restrictions and provisions of these regulations relating to transfers of shares shall be applicable to any such notice or transfer as aforesaid as if the death or insolvency of the member had not occurred and the notice of transfer were a transfer signed by that member.

TRANSFER OF LESS THAN 10 SHARES

58. Notwithstanding any other provisions in these Articles, the Directors shall not accept application for transfer of less than 10 shares of the Company provided, however, the said provision shall not apply to:

- a) the transfer of shares made in pursuance of a statutory provision or an order of a court of law;
- b) the transfer of the entire holding of shares by a shareholder;
- c) The transfer of more than 10 shares of the same class in the aggregate in favour of the same transferee under two or more transfer deeds out of which one or more relates to the transfer of less than 10 shares.

Provided that where a person is holding share in lots higher than the market trading on it and sells the market trading units, the resulting shares even though less than ten in number shall be permissible to stand in his own name.

DEVOLUTION ON DEATH OF A SHARE HOLDER

59. A person becoming entitled to a share by reason of the death or insolvency of the holder shall be entitled to the same dividends and the other advantages to which he would be entitled as if he were the registered holder of the share, except that he shall not, before being registered as a member in respect of the share, be entitled in respect of it to exercise any right conferred by membership in relation to meetings of the Company.

Provided that the Board may, at any time, give notice requiring any such person to elect either to be registered himself or to transfer the share and if the notice is not complied with within ninety days, the Board may thereafter withhold payment of all dividends, bonuses or other moneys payable in respect of the share until the requirements of the notice have been complied with.

COMPANY'S RIGHTS TO TRANSFER TO APPARENT LEGAL OWNER

60. The Company shall incur no liability or responsibility whatsoever in consequence of its registering or giving effect to any transfer of shares made or purporting to be made by any apparent legal owner thereof (as shown or appearing in the register of members) to the prejudice of persons having or claiming any equitable rights, title or interest to or in the same shares notwithstanding that the Company may have had notice of such equitable rights or title or interest or notice prohibiting registration of such transfer and may have entered such notice, or referred thereto in any book of the Company and shall not be bound by or required to regard or attend to or give effect to any notice which may be given to it of any equitable right, title or interest or to be under any liability whatsoever for refusing or neglecting to do so, though it may have been entered or refused to in the books of the Company, but the Company shall nevertheless be at liberty to have regard and attend to any such notice and give effect thereof, if the Board of Directors shall think fit.

SET-OFF OF MONEYS DUE TO SHAREHOLDERS:

61. Any money due from the Company to a shareholder may, without the consent of such shareholder, be applied by the Company in or towards payment of any money due from him, either alone or jointly with any other person, to the company in respect of calls or otherwise.

ALTERATION OF CAPITAL

ALTERATION & CONSOLIDATION OF CAPITAL

62. The Company in general meeting may from time to time:
- a) Increase its capital by the creation of new shares of such amount as may be deemed expedient, Consolidate and divide all or any of the share capital into shares of larger amount than its existing shares.
 - b) Sub-divide its existing shares or any of them into share of smaller amount than is fixed by the Memorandum so however, that in sub-division the proportion between the amount paid and the amount, if any, unpaid on each reduced share shall be as it was in the case of the share from which the reduced share is derived.
 - c) Cancel any shares which, at the date of the passing of the resolution have not been taken or agreed to be taken by the person and diminish the amount of its share capital by the amount of shares so cancelled.

- d) Convert all or any of fully paid up shares into stock and reconvert that stock into fully paid up shares of any denomination.

REDUCTION OF CAPITAL

63. The Company may (subject to the provisions of the Act) from time to time by Special Resolution, reduce its capital and any Capital Redemption Reserve Fund or Shares premium Account in any manner and with subject to, any incident authorised and consent required by law.

GENERAL MEETINGS

ANNUAL GENERAL MEETINGS

64. All general meetings other than Annual General Meetings shall be called Extra-ordinary General Meetings.

WHEN OTHER GENERAL MEETINGS TO BE HELD

65. The Board may whenever it thinks fit, call an Extra-ordinary General Meeting and it shall on the requisition of the members in accordance with Section 169 of the Act proceed to call an Extra-ordinary General Meeting. The requisitionists may, in default of the Board convening the same, convene the Extra-ordinary General Meeting as provided by Section 169 of the Act.

POSTPONEMENT OF GENERAL MEETING

66. The Board may, whenever it thinks fit and necessary, postpone an Annual General Meeting or Extra-ordinary General Meeting that had been convened by the Board or by the members or cancel such meeting and reconvene such meeting before such meeting is held or is due to be held. This provision shall not however apply to an Extra-ordinary General Meeting called by the members on requisition.

PROCEEDINGS AT GENERAL MEETING

QUORUM TO BE PRESENT WHEN BUSINESS COMMENCED

67. No business shall be transacted at any general meeting unless a quorum of members is present at the time when the meeting proceeds business. Save as herein otherwise provided five members present in person shall be a quorum.

IF QUORUM NOT PRESENT WHEN MEETING TO BE DISSOLVED AND WHEN TO BE ADJOURNED

68. If within half an hour from the appointed time for the meeting a quorum shall be not present, the meeting if convened upon such requisition as aforesaid, shall be dissolved, but in any other case it shall stand adjourned to the same day in the next week at the same time and place or to such other day and at such other time and place as the Board may by notice appoint and if at such adjourned meeting a quorum be not present within half an hour from the time appointed for holding the meeting those members who are present and not being less than two shall be a quorum and may transact the business for which the meeting was called.

CHAIRMAN OF GENERAL MEETING

69. The Chairman of the Board of directors shall preside as Chairman at every General Meeting of the Company. Vice Chairman shall chair the meetings in the absence of the Chairman. If there is no such Chairman/Vice Chairman or if at any meeting he is not present within fifteen minutes or is unwilling to act as Chairman/Vice Chairman, the members present shall choose another Director as chairman and if no Directors be present or if all the Directors decline to take the chair, then the members present shall choose one of their number to be chairman.

CHAIRMAN WITH CONSENT MAY ADJOURN MEETING

70. The Chairman with the consent of the meeting may adjourn any meeting from time to time and from place to place but no business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

HOW QUESTIONS DECIDED AT MEETING

71. Every question submitted to a meeting shall be decided in the first instance by a show of hands and in the case of an equality of votes, both on a show of hands and on a poll, the chairman of the meeting shall have a casting vote.

NOTICE FOR ADJOURNMENT

72. When a meeting is adjourned, it shall not be necessary to give any notice of the adjournment or of the business to be transacted at the adjourned meeting, except when the meeting is adjourned sine die.

POLL TAKEN WITHOUT ADJOURNMENT

73. A poll demanded on the election of Chairman or on a question of adjournment shall be taken forthwith. A poll demanded on any other question shall be taken at such time not being later than forty eight hours from the time when demand was made as the Chairman may direct.

VOTES OF MEMBERS

NO MEMBER ENTITLED TO VOTE WHILE CALL DUE TO COMPANY

74. No member shall exercise any voting right in respect of any share registered in his name, on which any call or other sums presently payable by him have not been paid or in regard to which the company has exercised any right to lien.

VOTES OF MEMBERS

75. i) Save as hereinafter provided on a show of hands, every member present and being a holder of equity shares have one vote.
- ii) Save as hereinafter provided, on a poll, the voting rights of equity shares shall be as specified in section 87 of the Act.
- iii) The holder of preference shares shall not be entitled to vote at a general meeting of the Company except as provided for in Section 87 of the Act.

Provided that no body corporate shall vote by proxy so long as resolution of its Board of Directors under the provisions of Section 187 of the Act is in force and representative named in such resolution is present at the General Meeting at which the vote by proxy is tendered.

COMPANY OR BODY CORPORATE AS A MEMBER

76. i) Where a body corporate (hereinafter called company) is a member of the Company, person duly appointed by resolution in accordance with the provisions of Section 187 of the Act to represent such member company at a meeting of the company, shall not, by reason of such appointment, be deemed to be a proxy, and the lodging with Company at the office or production at the meeting, a copy of such resolution duly signed by one Director of such member company and certified by him as being a true copy of the resolution shall on production at the meeting be accepted by the company as sufficient evidence of validity of his appointment. Such a person shall be entitled to exercise the same rights and powers including

the right to vote by proxy on behalf of the member company which he represents as that member company could exercise if it were an individual member.

- ii) Where the President of India or the Governor of State is a member of the Company, then his representation at meeting shall be in accordance with Section 187 of the Act.

DECEASED, INSANE AND INSOLVENT MEMBER'S VOTE

- 77. Any person entitled under these Articles to transfer any shares may vote at any general meeting in respect thereof in the same manner as if he were the registered holder of such shares, provided that forty eight hours at least before the time of holding the meeting or adjourned meeting, as the case may be at which he proposes to vote he shall satisfy the Board of his right to transfer such shares, unless the Board shall have previously admitted his right to vote at such meeting in respect thereof. If any member be a lunatic, idiot or non-composmentis, he may vote whether on a show of hands, or at a poll by his committee, curator, bonis or other legal curator and such last mentioned persons may give their vote by proxy.

JOINT HOLDER

- 78. Where there are joint registered holders of any share, any such persons may vote at any meeting either personally or by proxy, in respect of such shares as if he were solely entitled thereto, and if more than one of such joint holders be present at any meeting either personally or by proxy, then one of the said persons so present whose names stand first on the Register in respect of such share shall be entitled to vote in respect thereof. Several executors or administrators of a deceased member in whose name any share is registered shall for the purpose of this Article be deemed joint holder thereof.

APPOINTMENT & QUALIFICATION OF PROXY

- 79. Every proxy shall be appointed in writing under the hand of the appointer or his attorney duly authorised in writing or if such appointer is a corporation, under its common seal or the hands of its attorney, who may be the appointer, and any committee or guardian may appoint such proxy.

PROXY TO VOTE ONLY ON A POLL

- 80. A proxy shall be entitled to vote only on a poll.

DEPOSITION OF INSTRUMENT OF APPOINTMENT OF PROXY

81. The instrument appointing a proxy and the Power of Attorney or other authority (if any) under which it is signed or a notarially certified copy of that power of authority, shall be deposited at the Registered Office of the Company not less than forty-eight hours before the time for holding the meeting at which the person named in the instrument proposes to vote, and in default the instrument of proxy shall be treated as invalid. No instrument appointing a proxy shall be valid after the expiration of twelve months from the date of its execution. Any such instrument deposited with the Company as aforesaid shall remain permanently or for such time as the Directors may determine, in the custody of the Company.

VALIDITY OF VOTES GIVEN BY PROXY NOTWITHSTANDING DEATH OF MEMBER ETC

82. A vote given in accordance with terms of an instrument of proxy shall be valid notwithstanding the death of the principal, or revocation of the proxy or of any power of attorney under which such proxy was signed or the transfer of the share in respect of which the vote is given provided that no intimation in writing of the death, revocation or transfer shall have been received at the office before the meeting.

TIME FOR OBJECTIONS TO VOTE

83. No objection shall be made to the validity of any vote, except at the meeting or poll at which such vote shall be tendered and every vote whether given personally or by proxy, not disallowed at such meeting or poll shall be deemed valid for all purposes of such meeting or poll whatsoever.

CHAIRMAN OF A MEETING TO BE THE JUDGE OF VALIDITY OF VOTE

84. The Chairman of any meeting shall be the sole judge of validity of every vote tendered at such meeting. The Chairman present at the taking of a poll shall be the sole judge of the validity of every vote tendered at such poll.

DIRECTORS

NUMBER OF DIRECTORS

85. The minimum and maximum number of Directors shall be three and twelve respectively.

FIRST DIRECTORS

86. The following persons shall be the first Directors of the Company.

- 1) Shri. S. K. MYLSAMY GOUNDAR
- 2) Shri. S.K.M. SHREE SHIVKUMAR
- 3) Smt. M. KUTTILAKSHIMI
- 4) Smt. S. KUMUTAAVALLI
- 4) Shri. P. SHANMUGASUNDRAM

PROPORTION TO RETIRE BY ROTATION

87. Not less than two thirds of the total number of Directors shall be persons whose period of office is lengthy liable to retire by rotation.

PROMOTER'S DIRECTORS:

88. TIDCO, one of the promoters of the Company shall be entitled to have representation by nomination of one director on the Board of Directors of the Company so long as TIDCO and their associates hold not less than eleven per cent of the paid up equity share capital of the company including shares held by its nominees, any fraction thereon being rounded off to the next higher number.

SHARES OF QUALIFICATION OF DIRECTORS

89. It shall not be necessary for a Director to hold any qualification shares.

CERTAIN NOMINEES ON THE BOARD

90. a) Notwithstanding anything to the contrary contained in these Articles, so long as any moneys remain owing by the Company to Tourism Finance Corporation of India Ltd. (TFCI), Industrial Development Bank of India (IDBI), IFCI Ltd., Industrial Credit and Investment Corporation of India Ltd., (ICICI), Life Insurance Corporation of India (LIC), Unit Trust of India (UTI), Industrial

Reconstruction Bank of India (IRBI), General Insurance Corporation of India (GIC), New India Assurance Company Ltd. (NIA), Oriental Insurance Company Ltd., (OIC), United India Insurance Company Ltd. (UI) and National Insurance Company Ltd. (NIC) or to any other Finance Corporation or Credit Corporation or to any other Financing Company or Body out of any loans granted by them to the Company or so long as TFCI, IDBI, IFCI, ICICI, LIC, UTI, RBI, GIC, NIA, OIC, UI and NIC or any other Financing Corporation or Credit Corporation of any other Financing Company or Body hereinafter in the Article referred to as "The Corporation" continue to hold debentures in the Company by direct subscription or Private Placement, or so long as the Corporation holds shares in the Company as a result of underwriting or subscription or so long as any liability of the Company arising out of any guarantee furnished by the Corporation shall have a right to appoint from time to time, any person or persons as a Director or Directors, whole time or non-whole time, (which Director or Directors is/are hereinafter referred to as "Nominee Director/s") on the Board of the Company and to remove from such office any person or persons so appointed and to appoint any person or persons in his or their place/s.

The Board of Directors of the Company shall have no power to remove from office the Nominee Director/s. At the option of the Corporation such Nominee Director/s shall not be required to hold any share qualification in the company. Also at the option of the Corporation such Nominee Director/s shall not be liable to retirement by rotation of Directors. *Subject as aforesaid, the Nominee Director/s shall be entitled to the same rights and privileges and be subject to the same obligations as any other Director of the Company.*

The Nominee Director/s so appointed shall hold the said office only so long as any moneys remain owing by the company to the Corporation or so long as the Corporation holds Debentures in the Company as a result of direct subscription or private placement or so long as the Corporation holds shares in the Company as a result of underwriting or direct subscription or the liability of the Company arising out of the Guarantee is outstanding and the Nominee Director/s so appointed in exercise of the said power shall ipso facto vacate such office immediately once the moneys owing by the company to the Corporation are paid off or on the Corporation ceasing to hold Debentures/shares in the company or on the satisfaction of the liability of the Company arising out of the Guarantee furnished by the Corporation. The Nominee Director/s appointed under this Article shall be entitled to receive all notice of and attended all general meetings, Board Meetings and of the Meetings of Committee of which the Nominee Director/s is/are member/s as also the minutes of such meetings. The Corporation shall also be entitled to receive all such notices and minutes.

The Company shall pay to the Nominee Director/s sitting fees and expenses to which the other Directors of the Company are entitled, but if any other fees, commission, monies or remuneration in relation to such Nominee Director/s shall accrue to the Corporation and the same shall accordingly be paid by the Company directly to the Corporation. Any expenses that may be incurred by the Corporation or such Nominee Director/s in connection with their appointment or Directorship shall also be paid or reimbursed by the Company to the Corporation or, as the case may be, to such Nominee Director/s.

Provided that if any such Nominee Director/s is an officer of Corporation the sitting fees, in relation to such Nominee Director/s shall also accrue to the Corporation and the same shall accordingly be paid by the Company directly to the Corporation.

In the event of the Nominee Director/s being appointed as whole time Director/s, such Nominee Director/s shall exercise such powers and have such rights as are usually exercised or available to a whole time Directors in the Management of the affairs of the Company. Such whole time Director/s shall be entitled to receive such remuneration, fees, commission and money as may be approved by the Corporation.

SITTING FEES

91. Every Director shall be entitled to receive out of the funds of the Company by way of sitting fees as may be fixed by the Board from time to time for every meeting of Board or any Committee thereof attended by him. Any Director or all Directors is/are entitled to renounce his/their right to receive the sitting fees. The Directors shall be entitled to be paid their reasonable travelling, hotel and other out of pocket expenses incurred in connection with their attending the Board and Committee meetings or otherwise incurred in the execution of their duties as Directors.

REMUNERATION FOR EXTRA SERVICES

92. If any Director, being willing shall be called upon to perform extra services or to make any special exertion in going or residing away from his usual place of residence for any purposes of the Company or in giving special attention to the business of the Company or as a member of a Committee of the Board then, subject to provisions of the Act, the Board may remunerate the Director so doing either by a fixed sum or by a percentage of profits or otherwise and remuneration may be in addition to or in substitution for his remuneration above entitled.

BOARD MAY ACT NOTWITHSTANDING VACANCY

93. The continuing Directors may act notwithstanding any vacancy in their body but so that if the number falls below the minimum above fixed, the Board shall not, except for the purposes of filling vacancies, act so long as the number is below the minimum.

DISCLOSURE OF DIRECTORS' INTEREST

94. Every Director who is in any way, where directly or indirectly, concerned or interested in a contract or arrangement, entered into or to be entered into between the company and any other company where any of the Directors of the Company or two or more of them together held or hold not more than two percent of the paid up share capital in the other company shall disclose the nature of his concern or interest at a meeting of the board as required by section 299 of the Act. A general notice renewable in the last month of each financial year of the Company that a Director is a Director or a member of any specified body corporate or is member of any specified firm and is to be regarded as concerned or interested in any subsequent contract or arrangement with that body corporate or firm shall be sufficient disclosure of concern or interest in relation to any contract or arrangement so made and after such general notice it shall not be necessary to give special notice relating to any particular contract or arrangement with such body corporate or firm provided such general notice is given at a meeting of the Board of Directors. Every director shall be bound to give and from time to time to renew a general notice as aforesaid in respect of all bodies corporate of which he is director or member and of all firms of which he is a partner.

DISCUSSION AND VOTING BY INTERESTED DIRECTOR

95. No Director shall, as a director take any part in the discussion of or vote on any contract or arrangement in which he is any way, whether directly or indirectly concerned or interested nor shall his presence count for purpose of forming a quorum at the time of such discussion or vote. This prohibition shall not apply to ;
- a) any contract of indemnity against any loss which the directors or any of them may suffer by reason of becoming or being sureties or a surety for the company ; or
 - b) any contract or arrangement entered into by the company with a public company in which the interests of the Director consists solely in his being a director of such company and the holders of shares

not exceeding in number of value the amount requisite to qualify him for appointment as a director thereof he having been nominated as such Director by the company or in his being a member of the Company holding not more than two percent of the paid up share capital of the Company;

APPOINTMENT AND RETIREMENT OF DIRECTOR

ROTATION OF DIRECTORS

96. At each Annual General Meeting of the Company one third of the Directors for the time being as are liable to retire by rotation, or if their number is not three or a multiple three, then the number nearest to one-third shall retire from office. Neither a nominee Director nor an additional Director appointed by the Board under these Articles hereof shall be liable to retire by rotation within the meaning of this Article.

WHICH DIRECTOR TO RETIRE

97. The directors to retire by rotation at every Annual General Meeting shall be those who have been longest in office since their last appointment, but as between persons who become Director on the same day those to retire shall, in default of and subject to any Agreement among themselves, be determined by lot.

DIRECTOR BY ORDINARY RESOLUTION OF SPECIAL NOTICE

98. The Company may remove any Director before the expiration of his period of office in accordance with the provisions of the Act and appoint another person instead of the Director so removed whether such Director was appointed by the company in General Meeting or by the Board.

BOARD MAY FILL UP CASUAL VACANCY

99. If any director appointed by the Company in General Meeting vacates office as a Director before his term of office will expire in the normal course, the resulting casual vacancy may be filled up by the Board at a meeting of the Board but any person so appointed shall retain his office so long only as vacated Director would have retained the same if no vacancy had occurred. Provided that the Board may not fill such a vacancy by appointment thereto of any person who has been removed from the office of Director.

POWER TO APPOINT ALTERNATIVE DIRECTOR

100. The Board may in accordance with and subject to the provisions of Section 313 of the Act appoint any person to act as alternative Director during the latter's absence for a period of not less than three months from the date in which meetings of the Board are ordinarily held.

APPOINTMENT OF ADDITIONAL DIRECTORS

- 100A. The Board shall have power at any time and from time to time to appoint Additional Directors subject to section 260 of the Act and such Directors shall be eligible for appointment as Directors of the Company at a General Meeting.

MEETING OF DIRECTORS

101. The Board shall meet together at least once in every three months for dispatch of business and may adjourn and otherwise regulate its meeting and proceedings as it thinks fit, provided that atleast four meetings shall be held in a year. Notice in writing of every meeting of the Board shall be given to every Director for the time being in India, and at his usual address in India.

DIRECTOR MAY SUMMON MEETING

102. A Director may at any time , and the Secretary or any other officer authorised by the Board shall, upon the request of a director, made at any time, convene a meeting of the Board.

CHAIRMAN

103. The Chairman of the Board of Directors of the Company shall be entitled to take the chair at every meeting of the Board of Directors and conduct meetings. Vice-Chairman shall chair the meetings in the absence of the Chairman. But where no such Chairman or Vice-Chairman is elected or at any meeting the Chairman and vice-chairman both are not present within fifteen minutes after the time for holding the same, the Directors present may choose one of their members to be the Chairman of the meeting.

QUORUM

104. The quorum for a meeting of the Board shall be determined from time to time in accordance with the provisions of the Act. If a quorum is not present within fifteen minutes from the time appointed for a meeting of the Board, it shall be adjourned until such date and time as the Chairman of the Board shall decide.

POWER OF BOARD MEETING

105. A meeting of the Board at which a quorum be present shall be competent to exercise all or any of the authorities, powers and discretion by or under these articles or the Act for the time being vested in or exercisable by the Board.

HOW QUESTIONS TO BE DECIDED

106. Subject to the provisions of Section 316, 372(5)A, and 386 of the Act, questions arising at any meeting shall be decided by a majority of votes and, in case of an equality of votes, the Chairman shall have second or casting vote.

POWER TO APPOINT COMMITTEE & TO DELEGATE

107. The Board may subject to provisions of the Act, from time to time and at any time delegate any of its power to a committee consisting of such Directors as it thinks fit and may from time to time revoke such delegation. Any Committee so formed shall in the exercise of power so delegated, conform to any regulations that may from time to time be imposed upon it by the Board.

PROCEEDINGS OF COMMITTEE

108. The meetings and proceedings of any Committee consisting of two or more members shall be governed by the provisions herein contained for regulating the meetings and proceedings of the Board so far as the same are applicable thereto and are not superseded by any regulations made by the Board.

WHEN ACTS OF A DIRECTOR VALID NOTWITHSTANDING DEFECTIVE APPOINTMENT

109. Acts done by the persons as Director shall be valid, notwithstanding that it may afterwards be discovered that his appointment was invalid by reason of any defect or disqualifications or had terminated by virtue of any provisions contained in the Act or in these Articles, provided that nothing in this article shall be deemed to give validity to acts done by a Director after his appointment has been shown to the company to be invalid or to have determined.
110. Save in those cases where a resolution is required by Section 58A, 262, 292, 297, 308, 316, 372(5), 386 and 488(1) of the Act, to be passed at a meeting of the Board, a resolution shall be as valid and effectual as if it

had been passed at a meeting of the Board or Committee of the Board as the case may be, duly called and constituted if a draft thereof in writing is circulated, together with the necessary papers, if any, to all the Directors or to all the members of the Committee of the Board, as the case may be, then in India (not being less in number than the quorum fixed for a meeting of the members of the Board or Committee, as the case may be) and to all other Directors or members of the Committee at their usual address in India and has been approved by such of them as are then in India or by a majority of such of them as are entitled to vote on the resolution.

MINUTES

MINUTES BOOK

111. The company shall comply with requirements of section 193 of the Act, in respect of keeping of the minutes of all proceedings of every General Meeting and of every meeting of the Board or any Committee of the Board. The Chairman of the meeting may exclude at his absolute discretion such of the matters as are or could reasonably be regarded as defamatory of any person, irrelevant or immaterial to the proceedings or detrimental to the interest of the Company.

POWER OF DIRECTORS

GENERAL

112. Subject to the provisions of the Act, the control of the Company shall be vested in the Board who shall be entitled to exercise all such powers, and to do all such acts and things as the company is authorised to do; provided that the Board shall not exercise any power or do any act or thing which is directed or required whether by the Act or any other statute or by the Memorandum of the Company or by these Articles or otherwise, to be exercised or done by the company in General Meeting. Provided further in exercising any such power or doing any such act or thing the Board shall be subject to the provisions in that behalf contained in the Act or any other statute or in the Memorandum of the Company or in these Articles or in any regulations not inconsistent therewith and duly made thereunder, including regulations made by the Company in General Meetings by special resolution but no regulations made by the Company in General Meetings shall invalidate any prior act of the Board which would have been valid if that regulations had not been made.

SPECIFIC POWERS GIVEN TO DIRECTORS

- 113 (A) Without prejudice to the foregoing restrictions and powers and so as not in any way to limit or restrict the same, the Board shall have the power and authority to exercise, from time to time and as to in its discretion deem fit and proper in the interest and for and on behalf and on account of the company, the following powers and authorities, that is to say the power:
- i) To pay the costs, charges and expenses preliminary and incidental to promotion, formation, establishment and registration of the Company, and to have the same charged upon the funds of the company over such period of year as the Directors shall think fit;
 - ii) To incur all capital expenditure from time to time as the Directors shall think necessary;
 - iii) To purchase, take on lease or otherwise acquire in India any land (whether freehold, leasehold or otherwise) and with or without houses, buildings, structures or machinery, (fixed or loose) and any movable property, rights or privileges from any person including a Director in furtherance of or for carrying out its objects, at or for such price or consideration and generally on such terms and conditions and with such title thereto as they may think fit or may believe or be advised to be reasonably satisfactory;
 - iv) To purchase in India or elsewhere any machinery, plant, stores and other articles and things for all or any of the objects or purposes of the Company and in any such purchase or other acquisition to accept such title as the Directors may believe or may be advised to be reasonably satisfactory;
 - v) To enter into arrangement with foreign companies and other persons for obtaining by grant, licence or on other terms formulae and other rights and benefits and to obtain financial and /or technical collaboration, technical information, know-how and expert advice for the purposes of the business of the company ;
 - vi) At their discretion to pay for any property rights or privileges acquired by or services rendered to the Company, either wholly or partly in cash or in shares or in both, or in bonds, debentures, mortgages or other securities of the Company and any such shares may be issued either as fully paid up or with such amount credited as paid up thereon as may be agreed upon and any such bonds, debentures, mortgages or other securities may be either specifically

charged upon all or any part of the property of the Company and its uncalled capital or not so charged;

- vii) To secure the fulfillment of any contracts or agreements entered into by the Company by mortgage or charge of all or any of the properties of the Company and its uncalled capital for the time being or in such other manner as they think fit;
- viii) To pay and charge to the Capital Account of the company any commission or interest lawfully payable under the provisions of Sections 76 and 208 of the Act;
- ix) From time to time to extend the business and undertaking of the Company by adding to, altering, or enlarging all or any of the buildings, factories, workshops, premises, plant and machinery, for the time being the property or in the possession of the Company or by erecting new or additional buildings and to expend such sums of money for the purposes aforesaid or any of them, as may be thought necessary or expedient;
- x) To purchase or otherwise acquire from any person and to resell, exchange and repurchase any patent or licence for the use of any invention and to purchase or otherwise acquire for the Company any other property, formula, concessions, rights and privileges which the Company is authorised to acquire, at or for such price or consideration and generally on such terms and conditions as they may think fit;
- xi) To improve, manage, develop, exchange, lease, sell, re-sell, and repurchase, dispose of, deal with or otherwise turn to account any property (movable or immovable) or any rights or privileges belonging to or at the disposal of the Company or in which the Company is interested;
- xii) To remove all or any of the machinery, plant and other movable property of the Company for the time being in or upon lands, buildings or premises of the Company to other lands, buildings or premises;
- xiii) To sell for cash or on credit or to contract for the sale and future delivery of or to send for sale in any part of India or elsewhere any products or articles produced, manufactured or prepared by the Company as the directors may deem advisable;
- xiv) To appoint at their discretion, remove or suspend such managers, secretaries, officers, experts, solicitors, clerks, agents and servants

for permanent, temporary or special services, as they may from time to time think fit, and to determine their powers and duties and fix their salaries or emoluments and to require security of such amount as they think fit in such instances;

- xv) To institute, conduct, defend Compound or abandon any legal proceedings by or against the Company and also to compound and allow time for payment or satisfaction of any debts due and all or any claims or demands by or against the Company;
- xvi) To refer any claim or demands by or against the Company to arbitration and observe and perform the awards;
- xvii) To make and give receipts, releases and other discharges for money payable to the Company and for the claims and demands on the Company;
- xviii) To execute all deeds, agreements, contracts and other documents that may be necessary or expedient for the purposes of the Company;
- xix) To undertake on behalf of the Company, the payment of all rent and the performance of all covenants, conditions and agreements contained in or reserved by any lease that may be granted or assigned to or otherwise acquired by the Company;
- xx) To execute in the name and on behalf of the Company in favour of any Director or other person who may incur or be about to incur any personal liability for the benefit of the Company, such mortgages of the Company's property (present and future) as they think fit and any such mortgage may contain a power of sale and such other powers, covenants and provisions as shall be agreed upon;
- xxi) To give any person employed by the Company a commission on the profits of any particular business or transaction or a share in the general profits of the Company and such commission or share of profits of the Company and such commission or share of profit shall be treated as part of the working expenses of the Company;
- xxii) From time to time to make, vary and repeal bye-laws for the regulation of the business of the Company, its officers and servants;
- xxiii) To invest and deal with any of the monies of the Company upon such securities (not being shares of the Company) and in such manner as they think fit and from time to time to vary or realize such investments;

- xxiv) To borrow by issue of bonds, debentures, notes or other securities of the Company or otherwise either secured by a charge or mortgage or otherwise on the whole or any part of property of the Company, or unsecured, as the Directors may deem expedient, such sums as they think necessary for the purpose of the Company;
- xxv) To make advances and loans without any security, or on such security as they may think proper and to take security for already existing debts and otherwise to invest and deal with any of the monies of the Company in Government or Municipal securities, fixed deposits or deposits on call or notice in banks, and in such other manner as they may think fit and from time to time, to vary or realize such investments and for the purposes aforesaid to authorise the Managing Director, if any, within limits to be fixed from time to time by the Directors;
- xxvi) To purchase, take on lease or otherwise acquired and to sell, mortgage, lease, exchange or otherwise dispose of any property, rights or privileges which the Company is authorised to acquire or dispose of at such price and generally on such terms and conditions as they may think fit and to sign contracts, agreements, conveyances and other documents and to register documents and admit execution thereof;
- (xxvii) To acquire, construct and build any factories, warehouse, godowns, engine houses, tanks, wells or other constructions adopted to the objects of the company or erect houses or buildings for transaction of its business or for the employees of the company or for the purposes of investment of otherwise and to insure against fire or other risks all or any of the insurable property of the company ;
- (xxviii) To open and establish branches and agencies for the conduct of the company's business in any part of the world as may be determined by the Directors from time to time;
- (xxix) To make, draw, endorse or discount any cheque, promissory note or other Government Securities, hundies or other negotiable instruments in the name and for the purpose of the Company;
- (xxx) To appoint any person or persons (whether incorporated or not) to accept and hold in trust for the company any property belonging to the company or in which it is interested or for any other purposes and to execute and do such deeds and things as may be required in relation to any such trust and to provide for the remuneration of such trustees;

- (xxxi) To act on behalf of the company in all matters relating to bankrupts and insolvents;
- (xxxii) To comply with the requirements of any local law which in their opinion it shall, in the interests of the company, be necessary or expedient;
- (xxxiii) To pay and satisfy all debts due from them, all liabilities of and claims and demands against the company;
- (xxxiv) From time to time and at all times to entrust to and confer upon the officers for the time being of the company and to authorize or empower them to exercise and perform and by Power-of-Attorney under Seal to appoint any persons to be Attorneys of the Company and invest them with such of their powers, authorities, duties, and discretions exercisable by or conferred or imposed upon the Directors, but not the power to make calls or other powers which by law are expressly stated to be incapable of delegation as the Directors may think fit and for such time and to be exercised for such objects and purposes and subject to such restrictions and conditions, as the Directors may think proper or expedient and either collaterally with or to the exclusion of and in substitution for all or any of the powers, authorities, duties and discretions of the Directors in that behalf, with authority to such officers or attorneys to sub-delegate all or any of the powers, authorities, duties and discretions for the time being vested in or conferred upon them and from time to time to revoke all such appointments of attorney and withdraw, alter or vary all or any of such powers, authorities, duties and discretions;
- (xxxv) To take all necessary steps for registering the Company in conformity with the laws of the Foreign state and to apply for and accept all statutes, laws or decrees of the Government or authorities thereof necessary or expedient for enabling the company to carry on or more conveniently to carry on business within the jurisdiction of such state;
- (xxxvi) To make and carry into effect any arrangement for working in business with or affiliating any other person or Company, carrying on any business capable of being conveniently worked in conjunction with the business of the Company upon such terms and conditions as may be determined by the Directors of the Company in working or in liquidation;

(xxxvii) To establish, maintain, support and subscribe to any charitable or public or national object and any institution, society or club which may be for the benefit of the Company or its employees or may be connected with any town or place where the Company carries on business and to give pensions, gratuities or charitable aids to any person or persons who have served Company or to the wives, children or dependants of such person or persons that may appear to the Directors just or proper, whether any such person, his widow, children or dependants have or have not a legal claim upon the company, but subject to the provisions of Section 293 of the Act;

(xxxviii) To set aside portions of the profit of the Company, before recommending any dividend to form a fund to provide for such persons, gratuities or compensations or to maintain or create any Provident Fund or Benefit Fund for the benefit of the employees of the Company in such or any other manner as the Directors deem fit;

(xxxix) To enter into all such negotiations and contracts and rescind and vary all such contractors and execute and do all such, acts, deeds and things in the name and on behalf of the Company as they may consider expedient for or in relation of any of the matters aforesaid or otherwise;

(xl) To enter into any agreement with any Government, State, Authority Municipal, Local or otherwise and obtain from them any rights, concessions or privileges as the Directors deem fit;

(xli) To open accounts with any Bank or Banks for and in the name of the Company and to operate on the same and to draw cheques on the said Bank Accounts. The Director or Directors are entitled to determine from time to time the persons who may sign or draw such cheques on the Banking Accounts of the company and sign on the Company's behalf and in its name and for purpose of the Company, Bills, Notes, Receipts, Acceptances, Endorsements, Cheques, Dividend Warrants, Releases, contracts and other documents and to give the necessary instructions to the Company's Bankers, whether the account be overdrawn or not;

(xlii) Subject to Section 292 of the Act, from time to time and at any time, to delegate to any person so appointed any of the

powers, authorities and discretions for the time being vested in the Board, other than their power to make calls or to make loans or borrow monies and may annul or vary any such delegation;

- (B) The Directors shall at their absolute discretion perform every act and thing which they may consider necessary or expedient for the purpose of carrying on the business of the company excepting such acts and things as, by the Memorandum of Association of the Company or by these presents, may stand prohibited;

POWERS TO BE EXERCISED BY BOARD ONLY AT MEETING

114. (1) Subject to the provisions of the Act, the Board shall exercise the following powers on behalf of the Company and the said power shall be exercised only by resolutions passed at the meetings of the Board ;
- (a) Power to make calls on shareholders in respect of moneys unpaid on their shares.
 - (b) Power to issue debentures.
 - (c) Power to borrow moneys otherwise than on debentures.
 - (d) Power to invest the funds of the Company
 - (e) Power to make loans
- (2) The Board may by a Meeting delegate to any Committee of Directors, Managing Director, Chief Executive, Manager or any other principal Officer of the Company, the power specified in clauses (c), (d) and (e) above.
- (3) Every Resolution delegating the power set out in sub-clause(c) shall specify the total amount upto which funds may be borrowed and the nature of borrowal which may be made by the delegate.
- (4) Every Resolution delegating the power referred to in sub-clauses (d) shall specify the total amount upto which funds may be invested and the nature of investments which may be made by the delegate.
- (5) Every Resolution delegating the power referred to in sub-clause (e) above shall specify the total amount upto which loans may be made by the delegate, the purposes for which the loans may be made, and the maximum amount of the loans that may be made for each such purpose in individual cases.

BORROWING POWERS

POWER TO BORROW

- 115 The Board of Directors may from time to time at its discretion, subject to the provisions of Sections 58A, 292 and 293 of the Act, raise or borrow, whether from Directors or from elsewhere and secure the payment of any sum of money for the purpose of the Company.

CONDITIONS ON WHICH MONEY MAY BE BORROWED

- 116 The Board may, subject to this Article and with the sanction of the Company in General Meeting from time to time, at its discretion, raise or borrow or secure payment of any sum or sums of money for the purpose of the Company, by the issue of debentures, convertible or otherwise and to mortgage, pledge or charge the whole or any part of the property, assets or revenue of the company, present or future, including its uncalled capital, or otherwise and to transfer or convey the same absolutely or in trust, and to give the lenders powers of sale except on uncalled capital and other powers as may be deemed expedient, and to purchase, redeem or pay off such securities;

POWER TO RECEIVE DEPOSIT

117. Subject to Section 58A of the Act, the Directors may receive deposits for the purpose of the business of the Company on such terms and conditions as they think fit.

TERMS OF ISSUE OF DEBENTURES

- 118 Any debentures, debenture-stock or other securities may be issued at a discount, premium or otherwise and with any privileges and conditions as to redemption, surrender, drawing, allotment of shares, attending any General Meeting, appointment of Directors and otherwise. The power to issue debenture stock or other securities on condition that they shall be convertible into shares of any denomination shall only be exercised by the Company in the General Meeting

MANAGING DIRECTOR

POWERS TO APPOINT MANAGING DIRECTOR

- 119 Subject to the provisions of the Act, the Board may, from time to time, appoint a Managing Director of the Company, for a fixed term not exceeding five years at a time and may from time to time (subject to the

provisions of any contract between him and the Company) remove him from office and appoint another in his place. The Board may also appoint from time to time one or more person(s) as Joint Managing Director(s), whole time Director(s) and/or Deputy Managing Director(s) on such terms and conditions as may be agreed upon between him or them and Company.

TO WHAT PROVISIONS HE SHALL BE SUBJECT TO

- 120 Subject to the provisions of Section 255 of the Act, a Managing Director shall not while he continues to hold that office, be subject to retirement by rotation and he shall ipso facto and immediately cease to be a Managing Director if he ceases to hold the office of Director from any cause.

REMUNERATION OF MANAGING DIRECTOR

- 121 Subject to the provisions of the Act, a Managing Director, Joint managing Director(s), wholetime Director(s) and/or Deputy Managing Director(s) shall in addition to the remuneration payable to him as a Director of the Company under these Articles receive such additional remuneration, as may from time to time, be sanctioned by the Company. The Managing Director, Joint Managing Director(s), Wholetime Director(s) and/or Deputy Managing Director(s) shall not be entitled to any sitting fee for attending the Board or Committee Meeting.

POWERS TO MANAGING DIRECTOR

- 122 Subject to the provisions of the Act and in particular to the prohibition and restriction contained in Section 292 thereof, the Board may from time to time, entrust to and confer upon Managing Director for the time being such of the powers exercisable under these Articles by the Board as it may think fit and may confer such powers for such time and to be exercised for such objects and purposes, and upon such terms and conditions and with such restrictions as it thinks fit, and the Board may confer such power, either collaterally with, or to the exclusion of the powers of the Board and may from time to time, revoke, withdraw alter or vary all or any of such powers.

SECRETARY

APPOINTMENT

- 123 Subject to the provisions of the Act. the Board may appoint any individual possessing the prescribed qualification, to be the Secretary of the Company for any period and may fix the remuneration to be paid to and

determine the power exercisable and duties (in addition to the duties if any described in these Articles or the Act) to be performed by such Secretary.

SEAL

COMMON SEAL

- 124 The Company shall have a common seal and the Board shall provide for safe custody of the seal. The seal of the company shall not be affixed to any instrument except by authority of a resolution of the Board or a committee of the board authorised by it in that behalf and except in the presence of at least one Director and of the Secretary or such other person as the Board may appoint for the purpose and the one Director, and the Secretary or other person as aforesaid shall sign every Instrument to which the seal of the Company is so affixed in their presence.

DIVIDENDS

DECLARATION OF DIVIDENDS

- 125 The Company in General Meeting may declare dividends, but no dividend shall exceed the amount recommended by the Board,

RIGHT TO DIVIDEND:

- 126 Where capital is paid-up on any share in advance of calls, upon the footing that the same shall carry interest, such capital shall not, whilst carrying interest, confer a right to participate in profits.

INTERIM DIVIDEND:

- 127 (1) The Board may from time to time pay to the members such interim dividends as appears to them to be justified by the profits of the Company.
- (2) No dividend shall be payable except out of profits of the year or any other undistributed profits except as provided by Section 205 of the Act

METHOD OF PAYMENT OF DIVIDEND

- 128 (1) Subject to the rights of person if any, entitled to shares with Special rights as to dividends all dividends shall be declared and paid according to the amount paid up on the shares in respect whereof the dividend is paid.

(2) No amount paid or credited as paid on, a share in advance of calls shall be treated for the purpose of these regulations as paid on the share.

(3) All dividends shall be apportioned and paid proportionately to the amounts paid up or credited as paid up on the shares, during any portion or portions of the period in respect of which the dividend is paid; but if any share is issued on terms provided that it shall rank for dividend as from a particular date, such share shall rank for dividend accordingly.

DEDUCTION OF ARREARS

- 129 The Board may deduct from any dividend payable to any member all sums of money, if any, presently payable by him to the Company on account of calls or otherwise in relation to the shares of the company.

ADJUSTMENT OF DIVIDENDS AGAINST CALLS

- 130 Any General Meeting declaring a dividend or bonus may make a call on the members of such amount as the meeting fixes, but so that the call on each member shall not exceed the dividend payable to him and so that the call be made payable at the same time as the dividend, and the dividend may, if so arranged between the Company and themselves be set off against the call.

PAYMENT BY CHEQUE OR WARRANT

- 131 (1) Any dividend, interest, or other moneys payable in respect of shares may be paid by cheque or warrant sent through the post to the registered address of the holder or in the case of joint-holders to the registered address of that one of the joint holders, who is first named on the Register of Members or such person and to such address as the holder or the joint-holders may in writing direct.
- (2) Every such cheque or warrant shall be made payable to the order of the person to whom it is sent.
- (3) Every such cheque or warrant shall be posted within forty two days from the date of declaration of dividend.

RECEIPT OF JOINT-HOLDERS

- 132 Any one of two or more Joint holders of a share may give effectual receipt for any dividends, bonuses or other moneys payable in respect of such share.

DIVIDENDS NOT TO BEAR INTEREST

- 133 No dividend shall bear interest against the Company.

UNCLAIMED DIVIDEND

- 134 No unclaimed dividend shall be forfeited by the board. The board shall comply with the provision of section 205(A) of the Act.

TRANSFER OF SHARES NOT TO PRIOR DIVIDENDS

- 135 Any transfer of shares shall not pass the right to any dividend declared thereon before the registration of the transfer.

NOTICE OF DIVIDEND

- 136 Notice of any dividend that may have been declared shall be given to the persons entitled to share therein in the manner mentioned in the Act

RESERVE FUNDS:

- 137 (1) The Board may before recommending any dividend, set aside out of the profits of the Company, such sum as they think proper as a reserve or reserves which shall at the discretion of the Board be applicable for any purpose to which the profits of the Company may be properly applied, including provisions for meeting contingencies or for equalizing dividends, and pending such application, may, at their discretion, either be employed in the business of the Company or be invested in such investments (Other than shares of the Company) as the Board may, from time to time think fit.
- 2) The Board may also carry forward any profits which they may think prudent not to divide without setting them aside as Reserve.

CAPITALISATION OF PROFITS

CAPITALISATION OF PROFIT

- 138 (1) The Company in General Meeting may on the recommendation of the Board, resolve:
- (a) That it is desirable to capitalise any part of the amount for the time being standing to the credit of any of the Company's

reserve accounts or to the credit of the profit and loss account or otherwise, available for distribution ; and

(b) That such sums be accordingly set free for distribution In the manner specified In clause (2) below, amongst the members, who would have been entitled thereto, if distributed by way of dividend and in the same proportion.

2) The sum aforesaid shall not be paid in cash but shall be applied, subject to the provisions contained in clause (3) below, either in or towards;

i) Paying up any amounts for the time being unpaid on any shares held by such members respectively;

ii) Paying up in full, unissued shares or debentures of the Company to be allotted and distributed and credited as fully paidup, to and amongst such members in the proportion afore said; and

iii) Partly in the way specified In sub-clause (i) and partly in that specified in sub-clause (ii)

3) A share Premium Account and a Capital Redemption Reserve account may for the purpose of this regulation only be applied in the paying up of unissued shares to be issued to members of the Company as fully paid bonus shares.

4) The Board shall give effect to resolutions passed by the Company in General Meeting in pursuance of this Article.

POWERS TO DIRECTORS FOR DECLARATION OF BONUS

139. (1) Whenever such a resolution as aforesaid shall have been passed the Board shall:

a) Make all appropriations and applications of the undivided profits resolved to be capitalised thereby and all allotments and issues of fully paid shares if any and

b) Generally do all acts and things required to give effect thereof.

(2) The Board shall have full powers:

i) To make such provisions, by the issue of fractional certificates or by payment in cash or otherwise as they may think fit, in the case of shares becoming distributable in fractions ;

ii) To authorise any person to enter, on behalf of all the members entitled thereto, into an agreement with the Company providing for the allotment to them respectively, credited as fully paid-up, of any further shares to which they may be entitled upon such capitalisation, or (as the case may require) for the payment by the Company on their behalf, by the application thereto of their respective proportions of the profits resolved to be capitalised, of the amounts or any part of the amounts, remaining unpaid on their existing shares.

iii) An agreement made under such authority shall be effective and binding on all such matters.

ACCOUNTS

140 The Board shall cause proper books of account to be kept in accordance with section 209 of the Act.

141 The Books of accounts shall be kept at the office and at such other place in India as the Board may decide, and when the Board so decides the Company shall within seven days of the decision, file with the Registrar a notice in writing giving the full address of that other place

ADDRESS OF THAT OTHER PLACE

142. i) The Books of accounts shall be open for inspection by any Director during business hours

ii) The Board shall from time to time, determine whether and to what extent, and at what times and places, and under what conditions or regulations, the books of account, and books and documents of the Company shall be open to the inspection of the members not being Directors and no members (not being a Director) shall have any right of inspecting any books of account or book or document of the Company except as conferred by law or authorized by the Board or by the Company in general meeting.

BALANCE SHEET & PROFIT AND LOSS ACCOUNT

143 At every Annual General Meeting the Board shall lay before the Company a Balance Sheet and Profit and Loss Account made up in accordance with the provisions of Section 210 of the Act and such Balance Sheet and Profit and Loss Account shall comply with the requirements of Sections 210,211,212,215 and 216 and Schedule VI to the Act, so far as they are applicable to the Company, but save as aforesaid the Board shall not be

bound to disclose greater details of the result or extent of the trading and transactions of the Company than it may deem expedient.

ANNUAL REPORT OF DIRECTORS

144. There shall be attached to every Balance Sheet laid before the Company a report by the Board complying with Section 217 of the Act.

COPIES TO BE SENT TO MEMBERS AND OTHERS

145. A copy of every Balance Sheet (including the Profit and Loss Account, the Auditor's Report and every document required by law to be annexed or attached to the Balance Sheet) shall, as provided by Section 219 to the Act, not less than twenty one days before the meeting be sent to every such member, debenture holder, trustee and other person to whom the same is required to be sent by the said Section.

COPIES OF BALANCE SHEET TO BE FILED

146. The Company shall comply with Section 220 of the Act as to filing copies of the Balance Sheet and Profit and Loss Account and documents required to be annexed or attached thereto with the Registrar.

SERVICE OF NOTICE AND DOCUMENTS

TRANSFeree BOUND BY PRIOR NOTICES

147. Every person who by operation of law, transfer or other means whatsoever becomes entitled to any share shall be bound by every notice in respect of such share which perviously to his name and address being entered on the Register shall have been duly given to the person from whom he derives his title to such share.

NOTICE VALID THOUGH MEMBERS DECEASED

148. Any notice or document delivered or sent by post to or left at the registered address of any member In pursuance of these articles shall, notwithstanding such member be then deceased and whether or not the Company has notice of his decease, be deemed to have been duly served in respect of any registered share, whether held solely or jointly with other persons by such member until some other person be registered in his stead as the holder of joint- holdings thereof and such service shall for all purpose of these presents be deemed a sufficient service of such notice or document on heirs, executors or administrators and all persons, if any, jointly interested with him in any such share.

AUTHENTICATION OF DOCUMENTS

POWERS TO AUTHENTICATE DOCUMENTS

- 149 Any director or the Secretary or any other Officer authorised by the Board for the purpose shall have power to authenticate any document affecting the constitution of the Company, any resolution passed by the Company or the Board, any books, records, documents and accounts relating to the business of the Company and to certify copies thereof or extracts therefrom as true copies of extracts, and where any books, records, documents or accounts are kept elsewhere than at the office, the local manager or other officer of the company having custody thereof shall be deemed to be a person appointed by the Directors as aforesaid.

CERTIFIED COPIES OF RESOLUTION OF THE DIRECTORS

- 150 A document purporting to be a copy of a resolution of the Board or an extract from the minutes of a meeting of the Board which is certified as such in accordance with the provisions of the last preceding Article shall be conclusive evidence in favour of all persons dealing with the Company upon the faith thereof that such resolution has been duly passed of, as the case may be, that such extract is true and accurate record.

SECRECY

- 151 Subject to the provisions of the Companies Act, every Director, Manager, Secretary, Trustee for the company, its members or debenture holders, member of a committee, officer, employee, agent, accountant or other person employed in or about the business of the Company shall observe a strict secrecy respecting all transactions of the Company with its customers and the state of accounts with individuals and relating thereto and shall pledge himself not to reveal any of the matters which may come to his knowledge in the discharge of his duties except when required so to do by the Board or by any general meeting or by a Court of Law and except so far as may be necessary in order to comply with any of the provisions in these Articles contained.

WINDING UP

DISTRIBUTION OF ASSETS

- 152 If the company shall be wound up and assets available for distribution *among the members as such shall be insufficient to repay the whole of the paid up capital, such assets shall be distributed so that., as nearly as* may be, the losses shall be borne by the members in proportion to the capital paid up or which ought to have been paid up at the commencement of the winding up on the shares held by them respectively, and if in a

winding up the assets available for distribution among the members shall be more than sufficient to repay the whole of the capital paid up at the commencement of winding up, the excess shall be distributed amongst the members in proportion to the paid up capital at the commencement of the winding up which ought to have been paid up on the shares held by respectively. But this Article is to be construed without prejudice to the rights of the holders of shares issued upon special terms and conditions.

DISTRIBUTION OF ASSETS IN SPECIE

153

If the Company shall be wound up, whether voluntarily or otherwise, the liquidators may, with the sanction of a Special Resolution or any other sanction required by Law. divide among the contributories, in species or kind any part of the assets of the Company and may, with the like sanction, vest any part of the assets of the Company in Trustees upon such trusts for the benefit of the contributories or any of them, as the liquidators, with the like sanction, shall think fit.

INDEMNITY

INDEMNITY

154

Subject to Section 201 of the Act, every Director, Manager, Secretary or Officer of the Company or any person (whether an officer of the Company or not) employed by the Company and any person appointed as Auditor shall be indemnified out of the funds of the Company, against all claims, liability incurred by him as such Director, Manager Secretary, Officer. Employee or Auditor in defending any proceedings, whether civil or criminal in which judgement is given in his favour or in which he is acquitted, or in connection with any application under Section 633 of the Act in which relief is granted to him by the Court.

We, the several persons whose names and addresses are subscribed are desirous of being formed into a Company in pursuance of this Memorandum of Association and we respectively agree to take the number of shares in the capital of the Company set opposite our respective names.

S. No	Name and address, occupation and description of subscribers	Number of shares taken by each subscriber	Signature
1	S.K. Mylsamy Goundar, S/o. K.R.Krishnasamy Gounder. 38. Periyar Nagar, Erode - 638 001. Business	5 Five	(Sd.) S.K. Mylsamy Goundar
2	S.K.M. Shree Shivkumar, S/o. S.K. Mylsamy Goundar. 38. Periyar Nagar, Erode - 638 001. Business	5 Five	(Sd.) S.K.M. Shree Shivkumar
3	M. Kuttilakshimi, W/o. S.K. Mylsamy Goundar, 38. Periyar Nagar, Erode - 638 001. Business	5 Five	(Sd.) M. Kuttilakshimi
4	S. Kumutaavalli, W/o. S.K.M. Shree Shivkumar, 38. Periyar Nagar, Erode - 638 001. Business	5 Five	(Sd.) S. Kumutaavalli
5	S.M.Venkatachalapathy, S/o. S.R.Muthuswamy, 7. Narayanaswamy Road, Uzhavan Nagar, Erode - 638 009. Advocate	5 Five	(Sd.) S.M.Venkatachalapathy
6	M. N. Chinnaaswami, S/o. M.P.Nataraja Gounder, 451.S.K.C.Road. Erode - 638 009. Business	5 Five	(Sd.) M. N. Chinnaaswami
7	P.Shanmugasundaram, S/o. K.Palanisamy, 42/17. II Main Road. Gandhi Nagar, Madras-600020. Service (Representing TIDCO, Madras)	5 Five	(Sd.) P.Shanmugasundaram
Total No. of Shares		35 Thirty Five	

Date : 30.03.1995

Place: Erode

Witness to the above signature.

V. Kamalakannan A.C.A., A.C.S.,
10, Govindarajan Nagar,
Erode - 638 002.

All signed before me at Erode

(Sd.) V. Kamalakannan